STANDATA interpretation 23-BCI-016R1

Building

Barrier-free design requirements: relaxations

Date Issued: November 2025

Purpose

To clarify when a request for relaxation of barrier-free requirements is appropriate.

Discussion

The Provincial Barrier-Free Administrator and Provincial Building Administrator are receiving barrier-free relaxation requests that are either not appropriate for relaxation or lack the required review by the authority having jurisdiction (AHJ) during the building permit application stage.

Barrier-free design requirements apply to buildings as specified in Article 3.8.1.1. of the National Building Code - 2023 Alberta Edition (NBC(AE)). All new construction, including additions and change of use as set out in Article 3.8.1.1., are required to comply with barrier-free design requirements.

In accordance with the NBC(AE), barrier-free relaxations may be issued where compliance with barrier-free design requirements are unnecessary, or extraordinary circumstances prevent conformance with the requirements. These situations may be appropriate for a relaxation provided the applicant has demonstrated to the satisfaction of the Provincial Barrier-Free Administrator that valid conditions exist to support a relaxation of barrier-free requirements.

Applications for barrier-free relaxations will not be accepted by Municipal Affairs for new building construction required to comply with barrier-free design requirements under the NBC(AE). New construction refers to the creation of a completely new building that has not been previously occupied or used such as spaces that are being created (i.e., CRUs); or utilized for the first time (no prior tenants) within the “building envelope” and additions.

Residential housing projects may create numerous adaptable or accessible dwelling units*;* however, land constraints may prevent the provision of one (1) accessible parking stall for each adaptable or accessible dwelling units as required by the current code. Due to variations in design and size among residential projects, it is not feasible to provide a definitive percentage for accessible parking stall requirements. For guidance specific to your project, please contact the Provincial Barrier-Free Administrator at Community and Technical Support email (safety.services@gov.ab.ca) to determine the appropriate number of accessible stalls.

Barrier-free relaxations will not be issued to the applicant (i.e., owner or designer) to lower construction costs, to correct a missed code requirement, to fix construction errors, or to avoid the activity of evaluating and/or implementing more difficult design alternatives.

The Provincial Building Administrator and the Provincial Barrier-Free Administrator have the authority under Article 2.2.1.4., Division C of NBC(AE) to grant or refuse a relaxation.

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Exempted building uses from Barrier-Free Design and Access Requirements

Barrier-free design requirements do not apply to certain industrial uses which pose greater danger to persons and property from the use of hazardous materials and processes. Some special purpose buildings in heavy industries often require grade separations and other features essential to their functioning that are not compatible with barrier-free design and access. Other special purpose buildings may be partially exempt from barrier-free design requirements, such as certain industrial uses requiring barrier-free design for persons with hearing or visual disabilities but not for persons with physical disabilities.

Exemptions are listed in Sentence 3.8.1.1.(1) Application, Sentence 3.8.2.3.(2) Areas Requiring a Barrier-Free Path of Travel, and Sentence 3.8.2.8.(12) Showers.

Code References

Division C, Sentence 2.2.1.4.(1))

2.2.1.4. Barrier-Free Relaxations

1) *The Provincial Barrier-Free Administrator* and *Provincial Building Administrator* may grant relaxation of one or more of the requirements of Section 3.8. of Division B if an owner can demonstrate to the satisfaction of the *Provincial Barrier-Free Administrator* or *Provincial Building Administrator* that

a) the specific requirements are unnecessary, or

b) extraordinary circumstances prevent conformance.

Sentence 3.8.2.1.(1)

3.8.2.1. Exceptions
(See Note A-3.8.2.1.)

1) The requirements of this Section apply to all *buildings* except
a) detached houses, semi-detached houses, houses with a *secondary suite*, duplexes, triplexes, townhouses, row houses and boarding houses that are not used in social programs (see Note A-1.4.1.2.(1) of Division A, Secondary Suite),
b) *buildings* of Group F, Division 1 *major occupancy*,
c) *buildings* that are not intended to be occupied on a daily or full-time basis, including automatic telephone exchanges, pumphouses and substations, and
d) relocatable industrial accommodations.

A-3.8.2.1. Accessibility. Industrial buildings often pose a greater risk to their occupants due to the presence of significant quantities of dangerous materials or the use of hazardous processes. For example, plants which are classified as Group F, Division 2 or 3, may store and use toxic or highly flammable substances in significant quantities, or house processes which involve very high temperatures and which have a high degree of automation. In some facilities, particularly in primary industries such as forestry and metallurgy, the construction normally used and the operations carried out within the space can make compliance with the requirements of Section 3.8. impracticable. It is therefore intended that these requirements be applied with discretion in buildings of Group F, Division 2 or 3 major occupancy. However, where industrial buildings contain subsidiary occupancies, such as offices or showrooms, it is reasonable to require that accessibility be provided in these spaces.

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Application

Exempted building uses from barrier-free design and access requirements.

Interpretation

1. If a building project is assessed by the AHJ or safety codes officer (SCO) as exempted under the NBC(AE), an application for a barrier-free relaxation to Municipal Affairs is not required.

Sentence 3.8.2.1.(1) of the NBC(AE) allows the AHJ or SCO the discretion to assess building projects as exempt or partially exempt from barrier-free design requirements, provided the building project meets the conditions described under Sentence 3.8.2.1.(1).

2. The following occupancies or uses may be assessed by the AHJ or SCO as applicable exempted uses in addition to those currently described in the NBC(AE):

- fire and emergency medical services (EMS) dormitories, including washrooms and showers.
- industrial buildings used for heavy equipment maintenance and/or storage.
- workers' accommodations or camps located on industrial sites such as drilling, forestry, or mining sites.
- waste management facilities.
- abattoirs.
- recycling centres – operations/sorting areas.
- food/beverage service kiosks.
- limited-use, limited-access washroom facilities, such as in transit turnarounds; and
- temporary structures where barrier-free design requirements are demonstrated to be unnecessary to the AHJ such as modulars designated as classrooms or residential sales centres.

This INTERPRETATION is applicable throughout the Province of Alberta.

Unless stated otherwise, all Code references in this STANDATA are to Division B of the National Building Code - 2023 Alberta Edition

Issued by the Provincial Building Administrator and the Provincial Barrier-Free Administrator

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